REQUEST FOR PROPOSALS

RETURN PROPOSALS TO:
City of Portsmouth, Virginia
Attn: Purchasing
801 Crawford Street, 5th Floor
Portsmouth, Virginia 23704

Proposals must be returned in a sealed envelope to include company, proposal # and closing date.

PROPOSAL NUMBER
P129-14-MA

QUESTIONS CONTACT:
Mr. Michael Ammons
(757) 393-8858, Ext 6148
ammonsm@portsmouthva.gov

NOTE: Offeror is required to complete enclosed W-9 form and return with proposal response. Proposals not inclusive of a completed W-9 may not be considered.

DATE March 29, 2014	**CLOSING DATE** 2:00PM EST on Wednesday, April 9, 2014
PLEASE SUBMIT YOUR PROPOSAL FOR THE FOLLOWING REQUIREMENTS	
The City of Portsmouth is seeking proposals from qualified sources to provide the services outlined	
by the attached Request for Proposals. Award will be based on competitive negotiations as per City	
Code 12-276.	

I. Every contract in excess of Ten Thousand Dollars ($10,000.00) shall include the following provisions:

A. During the performance of this contract, the contractor agrees:

1. That the contractor will not discriminate against any employee or applicant for employment because of **race, religion, faith-based organization, color, sex, national origin, age, disability** or any other basis prohibited by State law. The contractor agrees to post in conspicuous places, available to employees and applicants for employment, notices setting forth the provisions of this nondiscrimination clause.

2. The contractor, in all solicitations or advertisements for employees placed by or on behalf of the contractor, will state that such contractor is an equal opportunity employer.

3. Notices, advertisements and solicitations placed in accordance with federal law, rule or regulation shall be deemed sufficient for the purpose of meeting the requirements of this section.

B. The contractor will include the provision on the foregoing paragraphs in every subcontract or purchase order over Ten Thousand Dollars ($10,000.00) so that the provisions will be binding upon each subcontractor or vendor.

II. **AWARD OF PROPOSAL** – Selection of proposals will be made in accordance with the City Code Section 12-276, non professional services.

III. Is your firm a minority business? Yes ☐ No ☐
Type_____

Form **W-9**
(Rev. October 2004)
Department of the Treasury
Internal Revenue Service

Request for Taxpayer Identification Number and Certification

Give form to the requester. Do not send to the IRS.

Print or type
See **Specific Instructions** on page 2.

Name (as reported on your income tax return)

Business name, if different from above

Check appropriate box: ☐ Individual/ Sole proprietor ☐ Corporation ☐ Partnership ☐ Other ▶ ..... ☐ Exempt from backup withholding

Address (number, street, and apt. or suite no.) | Requester's name and address (optional)

City, state, and ZIP code

List account number(s) here (optional)

Part I Taxpayer Identification Number (TIN)

Enter your TIN in the appropriate box. The TIN provided must match the name given on Line 1 to avoid backup withholding. For individuals, this is your social security number (SSN). However, for a resident alien, sole proprietor, or disregarded entity, see the Part I instructions on page 3. For other entities, it is your employer identification number (EIN). If you do not have a number, see *How to get a TIN* on page 3.

Note. *If the account is in more than one name, see the chart on page 4 for guidelines on whose number to enter.*

Social security number
☐☐☐ - ☐☐ - ☐☐☐☐

or

Employer identification number
☐☐ - ☐☐☐☐☐☐☐

Part II Certification

Under penalties of perjury, I certify that:

1. The number shown on this form is my correct taxpayer identification number (or I am waiting for a number to be issued to me), and
2. I am not subject to backup withholding because: (a) I am exempt from backup withholding, or (b) I have not been notified by the Internal Revenue Service (IRS) that I am subject to backup withholding as a result of a failure to report all interest or dividends, or (c) the IRS has notified me that I am no longer subject to backup withholding, and
3. I am a U.S. person (including a U.S. resident alien).

Certification instructions. You must cross out item 2 above if you have been notified by the IRS that you are currently subject to backup withholding because you have failed to report all interest and dividends on your tax return. For real estate transactions, item 2 does not apply. For mortgage interest paid, acquisition or abandonment of secured property, cancellation of debt, contributions to an individual retirement arrangement (IRA), and generally, payments other than interest and dividends, you are not required to sign the Certification, but you must provide your correct TIN. (See the instructions on page 4.)

Sign Here | **Signature of U.S. person ▶** | **Date ▶**

Purpose of Form

A person who is required to file an information return with the IRS, must obtain your correct taxpayer identification number (TIN) to report, for example, income paid to you, real estate transactions, mortgage interest you paid, acquisition or abandonment of secured property, cancellation of debt, or contributions you made to an IRA.

U.S. person. Use Form W-9 only if you are a U.S. person (including a resident alien), to provide your correct TIN to the person requesting it (the requester) and, when applicable, to:

1. Certify that the TIN you are giving is correct (or you are waiting for a number to be issued),

2. Certify that you are not subject to backup withholding, or

3. Claim exemption from backup withholding if you are a U.S. exempt payee.

Note. *If a requester gives you a form other than Form W-9 to request your TIN, you must use the requester's form if it is substantially similar to this Form W-9.*

For federal tax purposes you are considered a person if you are:

- an individual who is a citizen or resident of the United States,
- a partnership, corporation, company, or association created or organized in the United States or under the laws of the United States, or
- any estate (other than a foreign estate) or trust. See Regulation section 301.7701-6(a) for additional information.

Foreign person. If you are a foreign person, use the appropriate Form W-8 (see Publication 515, Withholding of Tax on Nonresident Aliens and Foreign Entities).

Nonresident alien who becomes a resident alien. Generally, only a nonresident alien individual may use the terms of a tax treaty to reduce or eliminate U.S. tax on certain types of income. However, most tax treaties contain a provision known as a "saving clause." Exceptions specified in the saving clause may permit an exemption from tax to continue for certain types of income even after the recipient has otherwise become a U.S. resident alien for tax purposes.

If you are a U.S. resident alien who is relying on an exception contained in the saving clause of a tax treaty to claim an exemption from U.S. tax on certain types of income, you must attach a statement that specifies the following five items:

1. The treaty country. Generally, this must be the same treaty under which you claimed exemption from tax as a nonresident alien.

2. The treaty article addressing the income.

3. The article number (or location) in the tax treaty that contains the saving clause and its exceptions.

CITY OF PORTSMOUTH

REQUEST FOR PROPOSALS
(SEALED PROPOSALS)

PROPOSAL NUMBER

P129-14-MA

FOR

NETWORK AUDIT AND VULNERABILITY ASSESSMENT

CLOSING DATE/TIME

April 9, 2014
2:00 PM

CITY OF PORTSMOUTH
Purchasing Office
801 Crawford St, 5th Floor
PORTSMOUTH, VA 23704

Michael Ammons
Purchasing Administrator
(757) 393-8858, ext. 6148
ammonsm@portsmouthva.gov

CITY OF PORTSMOUTH

Request For Proposals

RFP Number:	P129-14-MA
Issue Date:	March 29, 2014
Title:	Network Audit and Vulnerability Assessment
Issuing Agency:	City of Portsmouth Purchasing Office 801 Crawford Street, 5th Floor Portsmouth, VA 23704
Sealed Proposals will be received until:	2:00PM on Wednesday, April 9, 2014

Proposals being mailed or hand delivered should utilize the issuing agency address shown above. All inquiries for information should be directed to Mr. Michael Ammons, Purchasing Administrator, City of Portsmouth, 801 Crawford Street, Portsmouth, VA 23704, Telephone: (757) 393-8858, Extension 6148.

In compliance with this Request for Proposals (RFP) and subject to all conditions imposed therein, and hereby incorporated by reference, the undersigned offers and agrees to furnish the services described in accordance with the attached proposal or as mutually agreed upon by subsequent negotiation.

Name and address of firm:

_____

_____

_____

Telephone No.: _____

Date: _____

By: _____
Signature (In Ink)

_____
Name (Typed or Printed)

Title: _____

_____
Federal Identification Number

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I. PURPOSE

This Request for Proposal (RFP) by the City of Portsmouth, Virginia (City) is to solicit proposals from qualified sources (Contractor) to establish a contract through competitive negotiations for a network vulnerability audit and security analysis of the City's computer network.

II. BACKGROUND

The City has an extensive and complex data network of computers and other electronic devices located in several buildings throughout the city. These devices are networked to the City Data Center and other locations through the use of dedicated leased (Verizon, Cox) data circuits, dial-up telephone lines and wireless media. The network is accessible to city employees for the use of computer resources in the performance of work related duties. The Department of Information Technology administrates the network. The Department desires to evaluate the vulnerability of the network to unauthorized access to network resources by both internal city employees and external individuals (outside the city network). The City also desires effective security recommendations be identified to eliminate any potential problem areas and implement best practices in security management.

III. STATEMENT OF NEEDS

A. It is desired that this contract commence on or about May 1, 2014 and be completed no later than June 30, 2014.

B. <u>Perimeter (Internet Facing) network requirements</u>

1. It is required that the audit both a remote and onsite breach assessment.

2. It is required that the successful contractor evaluate security controls to detect and/or prevent unauthorized access to the City's computer network through its Internet connection. Evaluation shall include penetration testing of access to the City Web Server and other host platforms (database, application, file, etc.) in the Data Center and other city locations.

3. It is required that the successful contractor perform a network penetration test. The test shall be designed to test the City's internal systems and applications for potential areas of breach.

4. It is required that the successful contractor provide a vulnerability assessment to identify potential security concerns throughout the City of Portsmouth environment.

5. It is required that the successful contractor provide a breach assessment where the contractor will perform testing as a simulated attacker, evading the City's intrusion detection methods and using a variety of covert attack mechanisms that an attacker could use.

6. It is required that the Offeror provide a public information profile, identifying open source Intelligence information about the City that an attacker could leverage in further attacks against the City (email addresses, phone numbers, internal corporate information, posted application source code, forum posts with sensitive information, etc.).

7. It is required that the successful contractor evaluate security controls to detect and/or prevent unauthorized access to the City's computer network through its VPN.

8. It is required that the successful contractor evaluate security controls to prevent unauthorized access to the City's Email system, including access from inside the network and access through the web interface.

9. It is required that the successful contractor evaluate security controls to detect and/or prevent unauthorized access to the City's computer network through mobile data terminals (Police vehicles).

B. Internal Network Requirements:

1. It is required that the successful contractor provide a vulnerability assessment to identify potential security concerns throughout the City of Portsmouth environment.

2. It is required that the successful contractor provide a breach assessment where the contractor will perform testing as a simulated attacker, evading my intrusion detection methods and using a variety of covert attack mechanisms that an attacker could use.

3. It is required that the successful contractor perform network penetration testing, designed to test the City's internal systems and applications for potential areas of breach.

4. It is required that the successful contractor perform onsite social engineering such as employee impersonation, Spear Phishing, and Phone based Social Engineering. Physical Breach attempts will consist of a minimum of five (5) City locations.

5. It is required that the successful contractor evaluate security controls within the City Libraries from patron access points to detect and/or prevent unauthorized access to the City's computer network.

6. It is required that the successful contractor evaluate security controls within the Circuit Court Clerk's Office from patron access points to detect and/or prevent unauthorized access to the City's computer network.

7. It is required that the successful contractor evaluate security controls on Point of sale systems within the City of Portsmouth network. This testing

will be performed at no more than 5 locations containing point of sale or self-checkout systems.

8. It is required that the successful contractor evaluate security controls within and outside Behavior Healthcare Services to detect and/or prevent unauthorized access and verify those controls maintain HIPAA compliance.

9. It is required that the successful contractor evaluate security controls within the City to detect and/or prevent unauthorized access to the Computer Aided Dispatching system and other 911 systems.

10. It is required that the successful contractor evaluate security controls within the City to detect and/or prevent unauthorized access to systems within the Portsmouth Water Treatment Plant.

11. It is required that the successful contractor evaluate security controls to detect and/or prevent unauthorized access to the City's computer network through its wireless data network. The testing shall include as a minimum, sniffing of the wireless network from several locations in the city.

12. It is required that the successful contractor evaluate existing internal network security controls that limit access and/or prevent unauthorized use of the City's network resources by city employees. The testing shall include as a minimum access to sensitive data on City databases, files and other I.T. resources. In addition, the testing shall include attempted access from a minimum of twenty (20) locations on the WAN and ten (10) locations on the LAN. Of those totals, the City I.T. Security Team will identify some specific locations to test and the rest will be chosen at random by the security vendor.

13. The successful contractor shall prepare a written report of all security findings, including documentation of existing vulnerabilities. In addition, the report shall include suggested methods of correcting vulnerable conditions. The report shall also identify where the network is secure and where intrusion vulnerabilities have been mitigated. The report should include both network strengths and opportunities for improvement.

14. The successful contractor shall prepare a written report of network security best practices and identify needed technology, policies, etc. to provide a secure environment. The report shall include practical solutions and cost effective recommendations for each opportunity to improve security.

15. The successful contractor shall meet with the City I.T. Security Team to discuss the scope of work before beginning the project. During that meeting the I.T. Security Team will identify any specific network locations and systems to be tested as part of the scope of work. The I.T.

team will be available to provide assistance throughout the audit. An audit findings and recommendations meeting shall occur with the I.T. Security Team before and after the final draft report.

16. It is required that the successful contractor perform a vulnerability test upon the implementation of any recommended security improvements. The contractor shall submit findings in a written report at the completion of the second test.

IV. PROPOSAL PREPARATION AND SUBMISSION REQUIREMENTS

A. General Instructions:

1. RFP Response: In order to be considered for selection, Offerors must submit a complete response to this RFP. An **original** and three (3) copies of each proposal shall be submitted. The original proposal should be clearly marked "**ORIGINAL**" on its outside cover. **Should the Offeror fail to respond to all requirements of the RFP, or fail to provide adequate or complete documentation, as determined by the evaluation committee, the** Offeror's **proposal may be eliminated from further consideration.**

2. All proposals submitted under this RFP shall become the property of the City of Portsmouth and will be subject to public inspection in accordance with the *Virginia Freedom of Information Act*. Trade secrets of proprietary information submitted by an Offeror shall not be subject to public disclosure under the *Virginia Freedom of Information Act*; however, the Offeror must invoke the protections of Section §2.2-4342F of the *Code of Virginia*, in writing, either before or at the time the data or other material is submitted. The written notice must specifically identify the data or materials to be protected and state the reasons why protection is necessary. The proprietary or trade secret material submitted must be identified by some distinct method, such as highlighting or underlining, and must indicate only the specific words, figures or paragraphs that constitute trade secret or proprietary information. The classification of an entire proposal document, line item prices and/or total proposal prices as proprietary or trade secrets is not acceptable and may result in rejection of the proposal.

B. Specific Proposal Instructions:

1. The proposal package shall include as a minimum:

   a. The Request for Proposal document with any addenda acknowledgements filled out and signed as required.

   b. A brief statement of the Offeror's experience, qualifications and history in providing the services stated in the Statement of Needs, including past work experience in with other municipalities.

Define past work experience in network security, including the company's experience with network security audits. Provide a minimum of five organizations, including local and state governments within the Commonwealth of Virginia. This reference information should include the location, duration, project cost, and a point of contact with phone contact information.

c. Provide resumes, list of credentials or professional qualifications of personnel that will be assigned to the project.

d. A comprehensive description of the methodology used to perform the audit, including a definition of the Offeror's approach to gain access to network resources.

e. Demonstrated knowledge of and experience with one or more of the professional organizations that have promulgated I.T. security standards (HIPAA, Homeland Security Directive, Government Information Security Reform Act, Federal Information Security Management Act, United States General Accounting Office, etc.) and guidelines for conducting risk assessments.

f. Sample reports that demonstrate the Offeror's ability to provide security findings, recommendations, strengths, and weaknesses.

g. A detailed schedule of all fees associated with your company to complete this contract, include any optional services available to the City of Portsmouth.

h. Any other relevant information the Offeror deems necessary to provide the services needed to successfully complete the Statement of Needs.

2. For information, please contact Michael Ammons, Purchasing Administrator, at (757) 393-8858, Ext 6148, email: ammonsm@portsmouthva.gov.

3. Oral Presentation: Offerors who submit a proposal in response to this RFP may be required to give an oral presentation of their proposal to the City. This provides an opportunity for the Offeror to clarify or elaborate on the proposal. This is a fact finding and explanation session only and does not include negotiation. The City will schedule the time and location of these presentations. Oral presentations are an option of the City and may or may not be conducted.

4. Proposals will be addressed to:

City of Portsmouth, Virginia
Attn: Purchasing Department

801 Crawford Street, 5th Floor
Portsmouth, VA 23704

Specific proposal responses must be received not later than April 9, 2014 at 2:00PM, EST. **Proposals received after that time will not be considered.**

V. EVALUATION AND AWARD CRITERIA:

A. Evaluation Criteria for Proposals:

Proposals will be initially evaluated by the City committee on the basis of the written material provided in response to the RFP. The City may seek clarification as needed through telephone call or email to Offerors. Based on the initial evaluation, the City may select Offerors to make oral presentations.

The award of a contract shall be at the sole discretion of the City. The City may accept or reject any of or all proposals in whole or in part. The content of the proposal of the selected Offeror shall become the basis for a contractual award. Proposals should be submitted with the most favorable terms that the Offeror could propose with respect to both service and price.

The following criteria will be used in the proposal evaluation process:

1. Quality of the content of the proposal and the Offeror's response to the requirements of the solicitation.

2. Experience– Prior experience in providing similar services, including client references from previous engagements similar in nature.

3. Qualifications – Overall qualifications, experience and financial integrity of the organization.

4. Ability to provide the services – Specific information on the company's ability to deliver the required services. Including the firm's of working with municipal governments.

5. Responsiveness – The Offeror's ability to deliver the required services on time and in accordance with the Statement of Needs.

6. The proposed fee structure. Efficiency and economy are very important to the City. However, costs will not necessarily be the sole deciding factor in the selection process.

B. Award of Contract:

Selection shall be made of two (2) or more Offerors deemed to be fully qualified and best suited among those submitting proposals, on the basis of the factors involved in the request for proposal, including price if so stated in the request for proposal. Negotiations shall then be conducted with each of the Offerors so selected. Price shall be considered, but need not be the sole determining factor. After negotiations have been conducted with each Offeror so selected, the purchasing agent shall select one or more Offerors which, in his opinion, have made the best proposal, and shall award the contract to that Offeror or Offerors. Should the purchasing agent determine in writing and in his sole discretion that only one (1) Offeror is fully qualified, or that one (1) Offeror is clearly more highly qualified than the others under consideration, a contract may be negotiated and awarded to that Offeror. Offerors shall be accorded fair and equal treatment with respect to any opportunity for discussion and revision of proposals and such revisions may be permitted after submissions and prior to award for the purpose of obtaining the best and final offers. In conducting discussions, there shall be no disclosure of the identity of competing Offerors or of any information derived from proposals submitted by competing Offerors.

VI. INSTRUCTION TO OFFERORS:

A. ADDENDA – CHANGES TO THE PROPOSAL DOCUMENTS

No interpretation of the meaning of the specifications or other documents, or corrections of any apparent ambiguity, inconsistency or error therein will be made to any Offeror orally. Any request for such interpretations or corrections must be made in writing to:

Purchasing Office
City of Portsmouth
801 Crawford Street
Portsmouth, VA 23704
Fax: (757) 393-5475
Email: ammonsm@portsmouthva.gov

Any such request, which is not, received at least five working days before opening of proposals will not be considered. All such interpretations and supplemental instructions will be in the form of written addenda to the proposal documents, which if issued, will be mailed or faxed to all known prospective Offerors. However, it is the responsibility of each Offeror, before submitting its proposal, to contact the Purchasing Office at (757) 393-8858 to determine if any addenda have been issued and to make such addenda a part of its proposal. Failure to acknowledge addendum(s) may be cause for rejection of proposals. All addendums issued by the City must be signed by a person authorized to bind the Contractor and returned. By doing so, the Offeror acknowledges receipt of the addendum and assures full compliance with the addendum. The addendum becomes a part of the proposal package and supercedes original specifications that are changed by the addendum.

B. CANCELLATION OF PROPOSALS

The City reserves the right to cancel the Request for Proposals, and to reject any or all proposals in whole or in part whenever the committee or designee determines that such action is in the best interest of the City of Portsmouth.

C. COOPERATIVE AGREEMENT

This procurement is being conducted under the provisions of Section 2.2-4304 of the Virginia Public Procurement Act "Cooperative Procurement", as stated, a public body may purchase from another public body's contract even if it did not participate in the request for proposals, if the request for proposals specified that the procurement was being conducted on behalf of other public bodies. If authorized by the Contractor, the resultant contract may be extended to any jurisdiction within the Commonwealth of Virginia to purchase in contract prices in accordance with contract terms. Any jurisdiction using such contracts shall place its own orders directly with the successful Contractor. The City of Portsmouth acts only as the Contracting Agent and is not responsible of orders, payment or discrepancies of the participating jurisdictions. Offerors desiring to offer to other jurisdictions under the clause shall indicate in their response.

D. DEBARMENT STATUS

By submitting their offers, Offerors certify that they are not currently debarred by the Commonwealth of Virginia from submitting offers for contracts for the type of goods and/or services covered by this solicitation, nor are they an agent of any person or entity that is currently so debarred.

E. DISQUALIFICATION OF OFFERORS

Any of the following causes may be considered as sufficient for the disqualification of an Offeror and rejection of the proposal:

1. Submission of more than one proposal for the same work by an individual, firm, partnership or corporation under the same or different names. If a company has more than one division, only one proposal may be submitted for the company.

2. Evidence of collusion among Offerors in the preparation and submittal of any proposals.

3. Failure to provide the form(s) in the proposal documents, if required, in a timely manner, or to satisfy any other requirements listed in Section IV. Minor irregularities that do not materially affect the proposal may be waived at the sole discretion of the City.

F. ETHICS

By submitting their signed proposals, all Offerors certify that their proposals are made without collusion or fraud and that they have not offered or received any kickbacks or inducements from any other Offeror, Supplier, Manufacturer or Subcontractor in connection with their proposal, and that they have not conferred on any public employee having official responsibility for this procurement transaction any payment, loan, subscription, advance, deposit of money, services or anything of more than nominal value, present or promised, unless consideration of substantially equal or greater value was exchanged.

G. HOLD HARMLESS AND INDEMNIFICATION CLAUSE

The Contractor agrees to indemnify and hold harmless the City of Portsmouth and to protect and defend it against all claims and suits arising from actions of omission or commission of its employees, agents or subcontractors, whether for alleged tort or breach of contract, made by any party, including but not limited to its employees, subcontractors, material men, workmen, neighboring property owners, invitees, guests, and agents or employees of the City of Portsmouth, in the performance of the Contractor's work, from and against any and all claims, losses or expenses, including but not limited to attorney's fees, which either or both of them may suffer, pay or incur as a result of claims or suits due to, arising out of or in connection with any and all such damage, real or alleged. Contractor shall, upon written demand by the City, insure and defend at Contractor's sole expense any and all suits or defense of claims.

H. IMMIGRATION REFORM AND CONTROL ACT OF 1986

By submitting their proposals, Offerors certify that they do not and will not during the performance of this contract employ illegal alien workers or otherwise violate the provisions of the federal Immigration Reform and Control Act of 1986.

I. INSURANCE:

1. The Contractor shall procure and maintain, at its own expense, and with a company or companies acceptable to the Risk Administrator, the minimum insurance coverage's set forth below and contain severability of interest provisions. The Contractor shall place their insurance program with an insurance company rated "A" or above by a major rating agency and authorized to do business in Virginia.

2. The City of Portsmouth, VA including its elected and appointed officials, employees, and volunteers shall be named as an "Additional Insured" as more fully described below and the required insurance coverage shall be primary coverage and provide contractual liability coverage.

3. The Contractor shall provide notice of cancellation or non-renewal of insurance or changes to specific coverage items and/or limits of same to the City of Portsmouth in writing upon being notified of said cancellation or non-renewal by the insured. The Contractor shall maintain all insurance until the completion of the contract period.

4. Prior to performance under this agreement, the Contractor shall provide a Certificate of Insurance to the Risk Administrator along with a copy of the Additional Insured Endorsement. Failure by the Contractor to provide the Certificate and Endorsement before commencing performance may constitute grounds for termination for default.

5. The Contractor shall also be responsible to review and ensure that any and all sub-contractors comply with the insurance provisions contained herein and that said insurance is maintained as specified. The Contractor shall provide copies of any and all sub-contractor Certificates of Insurance with their proper endorsement(s) upon request. Insurance policies written on a "claims made form" will not be acceptable.

6. Additional Insured:

   The Contractor shall name the following as "Additional Insured" as stipulated within this contract:

   "The City of Portsmouth, including its elected and appointed officials, employees, and volunteers shall be named as an additional insured and the required insurance coverage shall be primary coverage and provide contractual liability coverage. The Contractor shall immediately provide notice of cancellation or non-renewal of insurance to the City of Portsmouth in writing upon being notified of said cancellation or non-renewal by the insured. In the event of cancellation, the Contractor shall promptly provide replacement insurance naming the City as an Additional Insured."

   The Additional Insured Endorsement must appear on the applicable CG form, i.e. CG 20 10, CG 20 26, CG 20 33, or CG 20 37 for GL and CA 20 48 for Auto, and the endorsement must be attached to the Certificate of Insurance and must properly reference the above language.

7. Commercial / Comprehensive General Liability:

   This is a guide and all contracts will be reviewed by the Risk Administrator for compliance with the insurance requirements prior to the City entering into a contract with the bidders or offerors. The City may require higher insurance limits, depending upon the task or service being insured. Please contact the Risk Administrator if you have any questions regarding insurance coverage that will be required.

   Coverage shall be as broad as: Comprehensive General Liability endorsed to include Broad Form, Commercial General Liability form including Products/Completed Operations.

   The Contractor and any sub-contractor shall provide a valid Certificate(s) of Insurance listing the insurance coverage maintained. The liability

insurance maintained by the Contractor shall include, at a minimum, the following coverage:

The minimum Limit of Liability shall be:

Limit of Liability per occurrence	$1,000,000
Products Completed Operations Aggregate	$2,000,000
General Aggregate Limit	$2,000,000

8. Automobile Insurance:

The Contractor shall provide valid Certificate(s) of Insurance listing the insurance coverage maintained. The Automobile Insurance maintained by the Contractor and any sub-contractor shall include, at a minimum, coverage of owned, non-owned and hired automobiles used by the contractor, his agents, representatives, employees or sub-contractors:

The minimum Limit of Liability shall be:

Liability per occurrence	$1,000,000

9. Umbrella Insurance Coverage.

Limit of Liability per occurrence	$2,000,000
General Aggregate	$2,000,000
Products Completed Operations Aggregate	$2,000,000

J. LATE PROPOSALS

To be considered for selection, offers must be received by the City of Portsmouth's Purchasing Office by the designated date and hour. The official time used in the receipt of proposals is that time on the automatic date stamp machine in the City's Purchasing Office. Proposals received in the purchasing office after the date and hour designated are automatically disqualified and will not be considered. The City is not responsible for delays in the delivery of mail by the U.S. Postal Service, private couriers, of the intercampus mail system. It is the sole responsibility of the Offeror to ensure that its proposal reaches the purchasing office by the designated date and hour. Offer receipt and openings or the receipt of proposals scheduled during a period of suspended state business operations will be rescheduled for processing at the same time on the next regular business day.

K. LAWS AND REGULATIONS

All applicable state laws, municipal ordinances, and rules and regulations of the authority having jurisdiction over the project/contract shall apply to the contract throughout, and they will be deemed to be included in the contract the same as though written in full herein.

L. NON-APPROPRIATION

Agreements are made subject to the appropriation of funds by City Council and are null and void in the event of non-appropriation by the City Council. Non-appropriation shall not be deemed a cancellation and shall terminate this agreement without recourse and with no liability on the part of the City of Portsmouth.

M. NON-DISCRIMINATION

1. It is the policy of the City of Portsmouth not to discriminate in the solicitation of requests for proposals, invitations for bids, or awarding of contracts. The City of Portsmouth shall not discriminate because of race, religion, faith based organization, color, sex, national origin, age, disability or any other basis prohibited by State law.

2. All contracts awarded as a result of this solicitation in excess of $10,000 shall include the following provisions:

   a. That the Contractor will not discriminate against any employee or applicant for employment because of race, religion, faith based organization, color, sex, national origin, age, disability or any other basis prohibited by State law. The Contractor agrees to post in conspicuous places, available to employees and applicants for employment, notices setting forth the provisions of this non-discrimination clause.

   b. The Contractor, in all solicitations or advertisements for employees placed by or on behalf of the Contractor, will state that such Contractor is an equal opportunity employer.

   c. Notices, advertisements and solicitations place in accordance with Federal law, rule or regulation shall be deemed sufficient for the purpose of meeting the requirements of this section.

3. The Contractor will include the provision on the foregoing paragraphs in every subcontract or purchase so that the provisions will be binding upon each Subcontractor or Vendor.

N. OBLIGATION OF OFFERORS

1. Offerors must become fully aware of the City's technical requirements for the Contract. Failure to do so will not relieve a successful Offeror of its obligation to furnish the material, equipment and labor necessary to carry out the provisions of the Contract Documents and to complete the work at the price proposed.

2. In addition, the Offeror will be held responsible for having examined the details of the proposed Statement of Needs. The Offeror will use its

personal knowledge and experience or professional advice as to the character of the proposed work and any other conditions surrounding and affecting the proposed work.

3. The submittal of a Proposal will be construed as evidence that all Offerors obligations have been satisfied and no subsequent allowance will be made in this regard.

O. PROPOSAL ACCEPTANCE PERIOD

Any proposal in response to this solicitation shall be valid for sixty (60) days. At the end of the sixty (60) day period, the proposal may be withdrawn at the written request of the Offeror. If the proposal is not withdrawn at that time it remains in effect until an award is made or the solicitation is cancelled.

P. PROPOSAL DOCUMENTS

These terms and conditions shall also become part of the contract documents and shall be binding upon the Offeror to whom award is made.

Q. PROPOSAL FORM

Proposals shall be submitted in the designated format, with all blank spaces properly filled in. Proposals shall be signed in longhand on the form below the typed name of the person authorized to bind the Offeror to a contract. The proposal must be signed in order to be considered responsive. If the Offeror is a corporation, the proposal must be signed with the legal name of the corporation and the signature of a person authorized to bind a corporation to a contract.

R. REQUIRED VA STATE CORPORATION COMMISSION ID NUMBER FOR ALL FOREIGN AND DOMESTIC BUSINESSES AUTHORIZED TO TRANSACT BUSINESS IN THE COMMONWEALTH

In accordance with the Code of Virginia § 2.2-4311.2, it is required that all Bidders or Offerors organized as a stock or non-stock corporations, limited liability companies, business trusts, or limited partnerships or registered as a registered limited liability partnerships, be authorized to transact business in the Commonwealth pursuant to Title 13.1 or Title 50 and that they include in their bid or proposal the identification number issued to it by the Virginia State Corporation Commission. Any business entity described above that enters into a contract with the City pursuant to procurement law shall not allow its existence to lapse or its certificate of authority or registration to transact business in the Commonwealth, if so required under Title 13.1 or Title 50, to be revoked or cancelled at any time during the term of the contract. The City may void any contract with a business entity if the business entity fails to remain in compliance with the provisions of this requirement.

All Bidders or Offerors shall submit with their bid or proposal response a statement or documentation providing one of the following:

1. The company's Virginia State Corporation Commission identification number and Virginia registered agent.
2. The application number furnished by the Virginia State Corporation Commission when the company applies for an identification number and the Virginia registered agent.

3. Any Bidder or Offeror that alleges it is not required to be authorized to transact business in the Commonwealth as a foreign business entity under Title 13.1 or Title 50, or, as otherwise required by law shall include in its bid or proposal a statement or documentation as to why the Bidder or Offeror is not legally required to be so authorized. The final determination will be made by the City.

Failure to submit either the State Corporation Commission number, or the application tracking number, or the statement or documentation of the offered exemption as required above may result in rejection of the bid or proposal as non-responsive by the City.

S. REJECTION OF IRREGULAR PROPOSALS

Proposals will be considered irregular and may be rejected if they show omissions, alterations of form, additions not called for, conditions, limitations, unauthorized proposals or other irregularities of any kind. The City reserves the right to waive any non-conformance or irregularities of proposals, or to reject any or all proposals, in whole or in part, whenever such non¬conformance or irregularities are minor and such action is deemed to be in the best interests of the City.

STATEMENT OF NON DISCLOSURE

The Offeror understands and agrees that the network security audit and vulnerability assessment, including all drafts and working documents will contain specific information and records pertaining to the physical and electronic security of sensitive systems, including the security of computer information systems, computer storage and programs, and/or telecommunications and utility equipment for the City of Portsmouth, VA. The Offeror further understands and agrees that disclosure of this audit information would jeopardize the public safety and the security of City computer systems and equipment of the City of Portsmouth. Therefore in accordance with the Virginia Public Information Act, including, but not limited to, Section 2.2-3705.2, as amended, paragraphs 3, 4, 6 and 10, and Section 2.2-3705.1, paragraph 7, all records specified above are exempt from disclosure without the express written consent of City of Portsmouth's Director of Information Technology.

ACKNOWLEDGMENT

_____
Name of Firm

_____
Signature/Title

_____
Date